

CIVIL PROCEDURE – SPRING 2026
FINAL EXAMINATION
PROFESSOR SMITH MORGAN
CAMPBELL UNIVERSITY SCHOOL OF LAW

This exam is 6 pages long (including this one). Please check to see that you have all 6 pages.

GENERAL INSTRUCTIONS:

- ❖ You make use of **any written or printed material** you bring into the exam room with you, including (without limitation) your casebook, notes, outlines, slides, commercial hornbooks, etc. You **may not** access any *new material* after having started the exam, and you **may not** access any material on the internet or make use of an AI/LLM, whether online or locally. **By turning in the exam, you certify your compliance with these instructions and that all work on the exam is your own.**
- ❖ Do not indicate your identity in your exam answers, and do not talk to me about the exam prior to receipt of your grade. Any questions or concerns *during* the exam should be directed to the proctors, who will contact me if necessary. Do not discuss the exam with others prior to the receipt of grades.

CONTENTS:

- ❖ You have **four hours** to complete this exam, which consists of **two issue-spotter essay questions**. Each question lists its point value, suggested time expenditure, and a maximum word count.
 - The maximum word counts provided are intended to provide more-than-sufficient space to answer the questions. You should not take the limits as suggesting that answers shorter than the maximum are *necessarily* inadequate.
- ❖ Within each question, **not all sub-questions or issues are created equal**. Some can be dispatched quickly; others require more or deeper analysis. **Their point values vary** along that dimension. Focus your time and attention wisely.
- ❖ **Read the call of the questions carefully**. Not every potential “civil procedure issue” potentially raised by the facts is being tested.
- ❖ Similarly, **not all issues are explicitly stated**. That does not mean they are not issues to be spotted. Your answers should address both the substance of the legal issues raised and, if implicated, their procedural propriety.
- ❖ Organize your answers clearly. Each of the questions has internal sub-questions (labeled as (a), (b), (c), etc.) indicating precisely what you are being asked to address. You are **strongly encouraged** to use those sub-questions as headers to organize your answers, and to include sub-sub(-sub-, etc.) headers where appropriate.

Good luck! You’ve got this.

QUESTION ONE: CIVIL PROCEDURE ... IN SPACE!

[55 points | ~3 hours | 3000 words]

BACKGROUND. Michael Traxus is a researcher aboard the *UESC Marathon*, a colony ship carrying several thousand cryogenically frozen¹ colonists and hundreds of staff (who cycle in and out of cryo), on a journey to the Tau Ceti star system, 12 light-years from Earth. The system's fourth planet ("Tau Ceti IV") is habitable, and the colonists intend to establish a permanent human colony on the planet.

It will take the *Marathon* 120 years to reach Tau Ceti IV. In the interest of maintaining law and order aboard the ship during that time, shortly before its departure, Congress admitted the *Marathon* to the union, making it the 51st state (postal code: MR). Among the staff on board the *Marathon* are sufficient judges to staff three courts: the Marathon State Court, the United States District Court for the District of Marathon ("D. Mara."), and the newly created U.S. Court of Appeals for the Thirteenth Circuit ("CA13"), which hears appeals from D. Mara. CA13 has no binding precedent other than U.S. Supreme Court cases. As for state law, *Marathon* has adopted the majority rule for all common law issues. The FRCP are applied as they would be in any other federal court.

Traxus was born and raised in North Carolina, where he still owns a home in Siler City, to which he intends to return in approximately 300 years when he "is done with all this boring space stuff" and "can get back to the real work on the farm." (Due to the time spent in cryo, he will only have physically aged about 30 years).

CryoTech Systems ("CTS") is a Delaware partnership and the exclusive manufacturer and servicer of all of the *Marathon*'s cryo pods. CTS has two partners—**NuCaloric, Inc. ("NCI")**, a Delaware corporation with its principal place of business in Houston, Texas; and **Sov, LLC**, a State of *Marathon*-based limited liability company² whose sole member is **Dr. Mara Sov**, a scientist who, prior to boarding the *Marathon* eighteen months ago, was domiciled in Charlotte, North Carolina. **Sov** has been in continuous cryo sleep since shortly before boarding. As a colonist, she intends to live the remainder of her life on Tau Ceti IV, which by Congressional authorization will become part of the State of *Marathon* immediately upon the ship entering the planet's orbit. **Meteoric Industries, Inc. ("MII")** is a Delaware corporation with its principal place of business on board the *Marathon*. **MII** manufactures the pressure-regulation components used in CTS's cryo pods.

PRIOR LITIGATION. Six months before the events at issue, a crew member (Chen) was injured when a cryo pod malfunctioned. Chen filed suit in *Marathon* State Court against CTS, asserting a negligence claim. The *Marathon* State Court bifurcated the trial into liability and damages. After a bench trial on liability, in which CTS's sole argument and defense was that the malfunction occurred due to a third party's improper maintenance, the *Marathon* State Court entered a general verdict for Chen. The parties subsequently settled as to damages.

¹ Cryogenic freezing is a process of "suspended animation" – the use of extreme cold to slow biological functioning so that humans can survive, essentially comatose, for the time necessary to travel interstellar distances. Aboard the *Marathon*, cryogenic sleep ("cryo") takes place within individual "cryo pods," which are the equivalent of technologically advanced, human-sized freezers. A cryo pod is visually depicted on page 4.

² *Marathon* law generally treats LLCs more like partnerships than corporations.

THE INCIDENT. While conducting a routine inspection of a cryo pod storage room on the *Marathon*, **Traxus** was seriously injured when the same **CTS** cryo pod involved in the Chen incident malfunctioned again. The pod’s pressure-regulation system—an **MII**-manufactured component—failed without warning, causing an explosive decompression. **Traxus**’s medical damages total \$149,999.

THE FEDERAL COMPLAINT. **Traxus** now files a complaint in D. Mara. against both **CTS** and **MII**:

Claim 1 – Negligence v. CTS: **Traxus** provides detailed factual allegations asserting that **CTS** negligently designed and manufactured a defective cryo pod and that its negligence proximately caused his injuries.

Claim 2 – Negligence v. MII: **Traxus** reincorporates the above allegations by reference and adds: “on information and belief, **MII** negligently contributed to the negligent design and manufacture of the cryo pod.”³

THE LITIGATION. The parties make the following motions:

First, prior to answering, **CTS** and **MII** file (a) a joint motion to dismiss the Complaint under **FRCP 12(b)(1)**.

The following day, **MII** files (b) a separate motion to dismiss Claim 2 under **FRCP 12(b)(6)**, challenging the sufficiency of the Complaint’s factual pleadings as to the claim against **MII**.

The district court withholds judgment on the motions (*i.e.*, declines to rule on them for now; the case continues to progress).⁴ **CTS** and **MII** timely answer the Complaint. In its answer, **CTS** includes a third-party complaint against Systems Engineer **John Runner**, a citizen of France currently in cryo sleep aboard the *Marathon*, alleging that **Runner**’s negligence in maintaining the pod caused the injuries to both Chen and **Traxus** and that **Runner** is therefore liable to **CTS** for any judgment **Traxus** obtains against **CTS**.

Marathon law provides that service of process on a person in cryo sleep may be effectuated by affixing a copy of the summons and complaint to the exterior of the person’s cryo pod, so they see it when they wake up. **CTS** has **Runner** served consistent with this provision.⁵ Due to an unrelated computer error, **Runner** is awoken the next day—rather than in 42 years, as intended—and sees the complaint. (*see image on next page*)

³ The elements of negligence under *Marathon* law are: duty, breach, causation, and damages.

⁴ This is procedurally proper.

⁵ As a reminder, **FRCP 4(e)(1)** statutorily authorizes service in federal court in a manner “following state law for serving ... in an action brought in courts ... in the state where the district court is located.”



Upon awakening, **Runner** moves (c) to dismiss the third-party complaint for insufficient service of process.

Runner subsequently moves (d) for summary judgment, arguing that the **Chen** judgment precludes **CTS** from relitigating the cause of the pod malfunction. The district court withholds judgment on each.

Finally, after discovery is complete, **CTS** and **MII** move for summary judgment. In support of the motion, they submit an affidavit from **CTS**'s chief engineer stating that the pod was functioning within all normal design parameters at the time of **Traxus**'s incident and that the malfunction resulted from improper maintenance. **Traxus** opposes, citing: (1) internal **CTS** maintenance logs documenting three prior pressure warnings on the same pod and (2) an expert opinion that the failure pattern is consistent with a design defect.

The district court grants the summary judgment motion, reasoning that **Traxus**'s circumstantial evidence "while not insubstantial, is less probative than the direct testimony of **CTS**'s chief engineer." **Traxus** (e) appeals the summary judgment decision to the Thirteenth Circuit.

The Thirteenth Circuit is going to reverse the district court on the summary judgment question. **Explain why** (including the standard of review it will apply), **and explain how the district court should resolve each of the pending (lettered, underlined, and boxed) motions when it gets the case back on remand.** You can address the appellate question (e) first or last, as you prefer.

Explain how each court should rule on each of the specifically identified matters/motions. Address each independently, even if you think an earlier-discussed motion will resolve the entire case (e.g., if you think the case should be dismissed after motion (a), keep going anyway). Your answer should address all "Civil Procedure" issues discussed in class implicated by the parties' actions that may affect the outcome of the pending matter/motion, whether implicit or explicit. But you should not address issues potentially implicated by the facts but not raised by any motion or appeal filed by a party.

QUESTION TWO: THE CAMPBELL BASKETBALL CRISIS

[30 points, 1 hour, 1200 words]

This question is based on this real post from the website formerly known as Twitter:



Daniel Moldovan ✓

@AgentMoldovan

...

Not all of college basketball is glamorous...

Whilst some players are signing multi million dollar deals today, this is a text that the Campbell University basketball players just received:

“Fellas, everyone in the program has lost key card access to the building. Out of our 15 basketballs, 10 have been stolen. If you are seen in the building, you will be asked to leave. This goes for not just you guys, but old staff and managers as well.”

12:17 PM · Apr 9, 2026 · 318.9K Views

Following the mysterious theft of 10 basketballs, **Campbell University** officials are desperate. Campbell University General Counsel Jeremiah “Bullfrog” Williams hires world-renowned private investigator Benoit Blanc to find the culprit.

Blanc prepares a written report. He concludes the culprit is infamous Campbell alum **Cameron “Cam” Bell**, a disgruntled former equipment manager for the Fighting Camels and current billionaire. **Bell** lives in California, although he owns a “nostalgia penthouse” in Durham (MDNC), which he occasionally visits. He likewise owns an ice cream shoppe (“Two Humps? More Like Two Scoops!”) in Buies Creek (EDNC). Blanc’s report concludes that **Bell** hacked into the key card system from his Sacramento (NDCA) home and then used his proprietary “Camelbot” to steal the basketballs (hiding them in the Camelbot’s humps, obviously).

Based on Blanc’s report, **Campbell University** (a North Carolina corporation with its principal place of business in EDNC) files suit against **Bell** in the U.S. District Court for the Western District of North Carolina in Charlotte, alleging a single claim for conversion under North Carolina law.⁶ It turns out one of the missing basketballs was signed by Norman Adrian Wiggins, and is insured for \$74,100. Each remaining basketball is insured for \$100, bringing the total alleged to have been converted to \$75,000. The summons and complaint were hand-delivered to **Bell** in Texas by Campbell’s Provost for Basketball Affairs, a top university official.

Bell immediately files an answer to the complaint. In it, he strenuously denies his culpability and insists, not unpersuasively, that there would be no way to fit 10 basketballs within the storage hump of a single Camelbot, especially because they’re modeled after dromedary camels (which only have a single hump.) At the end of his denials, he “reserves the right to raise any other defense, as appropriate.”

⁶ The elements of conversion under North Carolina law are not necessary to answer this question — conversion is basically a tort version of theft.

Subsequently, **Bell** files a (a) motion for judgment on the pleadings under Rule 12(c), arguing the case should be dismissed under Rules 12(b)(1), 12(b)(2), 12(b)(3) and 12(b)(5). The district court withholds judgment.

While the 12(c) motion is pending, the parties begin discovery. **Bell** requests **Blanc**'s original report, which contains, *inter alia*, his analysis of the factual evidence in the case; transcripts of his interviews with witnesses; his own theories on **Bell**'s motive, opportunity, and culpability; as well as his analysis of potential ambiguities or weaknesses in the case. **Blanc**, of course, is not a lawyer, although he discussed the facts with his old friend **Bullfrog Williams** while drafting the report. The report also contains **Blanc**'s painfully detailed second-by-second description of a security video. The report's description is the only remaining record of the video, which was stored on **Campbell**'s cloud storage system and lost after that system was compromised in an unrelated incident. **Campbell** objects to the production of the report, arguing that it constitutes work product. **Bell** files (b) a motion to compel.

How should the district court resolve each pending (lettered, underlined, and boxed) motion?

Address each specifically identified motion independently, even if you think an earlier-discussed motion will resolve the entire case (e.g., if you think the case should be dismissed after motion (a), keep going anyway). Your answer should address all "Civil Procedure" issues discussed in class implicated by the parties' actions that may affect the outcome of the pending matter/motion, whether implicit or explicit. But you should not address issues potentially raised by the facts but not raised by any motion or appeal filed by a party.

(exam complete)

(congratulations)